Brazoria County District Court

Cause No. 2024-CV-0030

Ashley Duncan, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Oral Deposition of Ashley Duncan

Date:	September 4, 2024
Location:	Offices of Dunn & Acosta LLP
Examining attorney:	Marilyn Fox, Ashford & Lyle LLP
Defending attorney:	Candice Smith, Dunn & Acosta LLP

Q: Please state your full name for the record.

A: I'd rather just say I'm the plaintiff in this case, but I understand you need it. I'll give the court reporter what she needs.

Q: Understood. Let's start with the accident. Where were you when it happened?

A: I was driving on a multi-lane road in Katy, Texas, heading to work. Traffic was moderate, and I was in the middle lane.

Q: What were you doing right before the collision?

A: I was changing lanes to the right because the lane ahead was slowing down. I checked my mirror and saw a gap. I started to move over, and then I felt a hard bump on my side. The other car had come up into my lane while I was already partway over.

Q: Did you see the other vehicle before you moved?

A: I don't think I saw it in the mirror when I checked. It must have been in my blind spot. I'm not sure how long it had been there.

Q: After the impact, what happened to your vehicle?

A: My car spun a little and scraped along the guardrail before it stopped. The airbag on my side went off. I remember my head snapping against the window frame.

Q: Did you lose consciousness?

A: I don't think I fully blacked out, but everything went fuzzy for a few seconds. I was disoriented when I climbed out of the car.

Q: When did you first notice symptoms?

A: Right away I had a splitting headache and I felt nauseous. Ltaer that evening I had trouble with bright lights and I kept losing my train of thought at work the next few days.

Q: Who treated you atfer the accident?

A: An ambulance took me to the emergency room. They did a CT scan and diagnosed a concussion. After that I saw my primary care doctor and then a neurologist for follow-up. I also did several sessions of physical therapy for my neck.

Q: How has the injury affected your daily life?

A: I can't drive for long stretches without getting a headache. I've had to cut back my hours at work, and I stopped playing in my weekend recreational league because I get dizzy when I run. My family has had to help with grocery runs and housework, which is hard for me to accept.

Q: Are your symptoms getting better?

A: Some days are better than others. The headaches have eased a bit, but I still have trouble concentrating for long periods. My doctor says recovery can take time, and I'm trying to be patient with it.